

Our Ref: ALR:OS:13629
Your Ref:

3 September 2024

Federal Circuit and Family Court of Australia
GPO Box 9991
NEWCASTLE NSW 2300

By Email only: CaseManager.JRFurner@fcfcoa.gov.au

Dear Judicial Registrar

Re: NCC3896/2023 Cooke & Cooke

We refer to the above matter and confirm we act on behalf of the Respondent, Dr Heather Anne Cooke. Mr Matthew Shepherd of Ramsden Family Law acts on behalf of the Applicant Mr Stephen Christopher Cooke.

The matter was last heard by Judicial Registrar Furner at a Directions Hearing on 23 July 2024. The matter is next listed for a Parenting and Property Family Dispute Resolution before Senior Judicial Registrar Kelly, with Part 1 listed for 13 September 2024 and Part 2 listed for 18 September 2024.

The parties have engaged in negotiations and reached a final agreement to settle their property matter.

We **enclose** for the Court's consideration the proposed Minute of Consent Orders executed by the parties. The parties jointly request that the Orders be considered by Judicial Registrar Furner in Chambers.

These Orders complete the proceedings in respect of property settlement and spousal maintenance. This makes the interim hearing on 27 September 2024 redundant and that date can be vacated.

These Orders do not complete the proceedings for parenting Orders. Both parents seek Orders that the children live with them. The dispute resolution conference with a Registrar and Court Child Expert on 18 September 2024 should continue as an opportunity for the parties to see if they can agree on final parenting Orders. If they cannot, there is a directions hearing on 15 October.

Based on the Balance Sheet below, the Orders result in a 57%/43% split of the non-superannuation pool in the Applicant's favour, and a 52%/48% split of the pool including superannuation in the Respondent's favour.

	Description	Value	Heather's split	Stephen's split
ASSETS				
1	Balance of net sale proceeds of 1/213 Morgan Street, Merewether NSW	\$265,681	\$15,375	\$250,306
2	703/1 Como Crescent, Southport QLD	\$520,000	\$520,000	\$0
3	Westpac account #6533		\$0	\$0
4	Westpac account #6525		\$0	\$0
5	Westpac offset #2136 (Como offset) as at 7 August 2024	\$7,960	\$7,960	\$0
6	2020 Audi Q3 Wagon #EIN83R	\$50,000	\$50,000	\$0
7	2015 Honda CRV #DAI47C	\$14,500	\$0	\$14,500
8	Heather Anne Cooke ABN 79 687 721 943		\$0	\$0
9	Heather Anne Cooke Discretionary Trust		\$0	\$0
10	Telstra Shares - 552 @ \$3.64 on 25.06.24	\$2,009	\$2,009	\$0
11	Praemium Prae investments portfolio #8788	\$100,000	\$0	\$100,000
12	Home entertainment	\$15,000	\$0	\$15,000
13	Praemium Prae managed funds spent on legal fees	\$43,107	\$0	\$43,107
14	Interim property settlement	\$50,000	\$0	\$50,000
15	Interim property settlement to Heather	\$200,000	\$200,000	
16	Interim property settlement to Stephen	\$200,000		\$200,000
	Total	\$1,468,257	\$795,344	\$672,913
LIABILITIES				
17	Westpac home loan #2919	\$222,479	\$222,479	\$0
18	Westpac car loan #6300	\$13,000	\$13,000	\$0
	Total	\$235,479	\$235,479	\$0
SUPERANNUATION				
19	Q Super	\$330,454	\$330,454	\$0
20	Future Super	\$164,304	\$0	\$164,304
	Total	\$494,758	\$330,454	\$164,304
OUTCOME				
	Total (inc. Super)	\$1,727,536	\$890,319	\$837,217
	Percentage (inc. super)		51.54%	48.46%
	Total (exc. Super)	\$1,232,778	\$559,865	\$672,913
	Percentage (exc. Super)		45.41%	54.59%

Background

1. The Applicant was born on 27 October 1981 and is presently 42 years of age.
2. The Respondent was born on 31 July 1978 and is presently 46 years of age.
3. The parties commenced cohabitation in or around May 2012, married on 26 September 2012, and separated on a final basis on 17 November 2023.
4. There are two (2) children of the relationship:
 - (a) Christian Finn Cooke born 20 August 2014 currently 10 years of age, and
 - (b) Joshua Finn Cooke born 27 January 2017 currently seven (7) years of age.

The parties have filed material containing the evidence they each say is relevant under the Family Act.

The Respondent submits that she has made greater contributions and that there is no basis for adjustment pursuant to s75(2). The Respondent submits that the proposed Orders are just and equitable.

The Applicant consents to the Orders to avoid further delay and costs.

Both parties ask that the Honorable Court make the Orders as executed by the parties.

We look forward to receiving a response as to the making of the Orders. Yours faithfully

Anna Roberts
Delaney Roberts Family Lawyers
Solicitor for the Respondent

Matthew Shepherd
Ramsden Family Law
Solicitor for the Applicant

Encl. 1